

Tentative Rulings for May 19, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

20CECG00012	<i>Jeffrey Seaberg v. Specific Properties LLC</i> is continued to Tuesday, June 23, 2026, at 3:30 p.m. in Department <u>501</u> .
24CECG01797	<i>Fernando Jacques vs. Maxco Supply, Inc.</i> is continued to Tuesday, June 30, 2026, at 3:30 p.m. in Department <u>501</u> .
24CECG05085	<i>EBF Holdings, LLC v. Sulakhan Singh</i> is continued to Tuesday, June 30, 2026, at 3:30 p.m. in Department <u>501</u> .
25CECG04869	<i>Patricia Martinez v. Andrew Denison</i> is continued to Tuesday, June 9, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: ***Kharoufeh v. California Department of Corrections & Rehabilitation***
Case No. 23CECG04600

Hearing Date: May 19, 2026 (Dept. 502)

Motions: Defendant, California Department of Corrections & Rehabilitation's Motion to Compel Deposition of Plaintiff, Alyah Kharoufeh

Tentative Ruling:

The motion to compel deposition is moot.

To grant sanctions in favor of the California Department of Corrections & Rehabilitation's and against plaintiff and/or her counsel Larry Shapazian and/or against the law firm Tomassian, Pimentel & Shapazian, in the amount of \$7,226.95. Plaintiff and/or her counsel Larry Shapazian and/or the law firm Tomassian, Pimentel & Shapazian shall pay sanctions to the California Department of Corrections & Rehabilitation within 30 days of the date of service of this order.

Explanation:

Defendant, California Department of Corrections & Rehabilitation ("CDCR" or "defendant") makes this motion to compel plaintiff, Alyah Kharoufeh ("Kharoufeh" or "plaintiff"), to attend a deposition scheduled for April 13, 2026.

Despite CDCR's best efforts for more than a year, plaintiff's deposition has yet to be completed. As such, on March 27, 2026 at the pretrial discovery conference, this court directed that Kharoufeh's deposition occur prior to April 30, 2026, and that the instant motion to compel would remain on calendar.

The March 27, 2026 order reads as follows:

The parties, after discussion and negotiation, agree to the following order:

Plaintiff is ordered to appear for her continued deposition before April 30, 2026. If Plaintiff is still seeking mental and emotional distress damages that she alleges or contends are current, a mental examination will take place. If after the deposition it appears she is still seeking such damages and issues arise, Defendant may file a Request and the court will address any issues at that time in terms of the length of the examination and whether materials will be provided to

counsel. The currently set motion to compel will go forward on April 28.

Both parties acknowledge that Kharoufeh's sat for a full day of deposition on April 13, 2026 and that no deposition notice is currently pending for any further sessions. Accordingly, there is no pending properly served, unobjected to, deposition notice that Kharoufeh's has failed to appear at. CDCR's request that the Court require Kharoufeh a second day of deposition in the event that the December 2026 mediation is not successful, is currently premature.

With respect to sanctions, “[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.)

CDCR requests monetary sanctions of \$7,226.95. CDCR contends it incurred fees and costs in expenses of \$2,500, court reporter costs of \$626.95 and videographer costs of \$600 due to plaintiff's failure to appear at, and/or complete her deposition. (Heidi Machen Decl., ¶ 16, Ex. H.) CDCR further provides that incurred an additional \$1,000 in fees and costs for re-noticing and re-preparing for depositions. (*Id.*, at ¶ 17.) CDCR also asserts it incurred an additional \$2,500 "in fees and costs of preparing this motion to compel and will incur additional costs in drafting a response brief and potentially in making an appearance in the event that Plaintiff opposes this motion." (*Id.*, at ¶ 19.)

Under these circumstances, sanctions are warranted given the repeated and numerous last minute deposition cancellations, by plaintiff and her counsel the repeated failure of plaintiff and her counsel to work with defense counsel to reschedule her deposition, and the fact that a full day of deposition testimony was only completed after this Court's intervention

Accordingly, sanctions in the amount of \$7,226.95 are granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 05/15/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Doe v. Fresno Unified School District, et al.***
Superior Court Case No. 23CECG03206

Hearing Date: May 19, 2026 (Dept. 502)

Motion: By Defendant Samuel Confectioner for Summary Judgment,
or alternatively, for Summary Adjudication

Tentative Ruling:

To deny. (Code Civ. Proc., § 437c.)

Explanation:

Plaintiff John "HJ" Doe (hereinafter "plaintiff") alleges that he was the victim of childhood sexual abuse that occurred when he was approximately 15-17 years old. The alleged perpetrator, defendant Samuel Confectioner, was a substitute teacher employed by defendant Fresno Unified School District ("FUSD") when the abuse allegedly occurred.

The operative pleading is the Second Amended Complaint ("SAC") which alleges four causes of action against FUSD: (1) negligence; (2) negligent supervision; (3) negligent hiring/retention; and (4) public entity liability for failure to perform mandatory duty. All but the third cause of action are asserted against Confectioner (as well as FUSD).

Confectioner seeks summary judgment, or alternatively summary adjudication of unspecified causes of action. The motion primarily appears to be drafted as an attack on the pleading, but without showing that any particular element or elements of the various causes of action are not adequately pled.

Before addressing the merits of the motion, the court will address plaintiff's evidentiary objections. For the most part these are nuisance objections with no basis or merit. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532-533 [parties are encouraged "to raise only meritorious objections to items of evidence that are legitimately in dispute and pertinent to the disposition of the summary judgment motion."].) The court sustains objection no. 2 to the complaint filed in Sacramento Superior Court, as there is no authentication of the document. All other objections are overruled.

In moving for summary judgment, a defendant has burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) Only if the defendant has met that burden, does the burden shift to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Id.*)

Confectioner first argues that the SAC's propensity-based theory must be excluded under Evidence Code §§ 1101 and 352. Confectioner points to the SAC's

allegations of a 2004 arrest and conviction involving other alleged conduct and quotes Penal Code provisions. (SAC ¶ 18.) The SAC further alleges that defendant had a "pedophilic nature," that there were "reports," "red flags," "grooming," and similar generalized character allegations. (SAC ¶¶ 20, 28-30, 36-38.)

Confectioner appears to be raising an issue of admissibility evidence at trial. Confectioner makes no showing that exclusion of any unspecified propensity-based evidence would negate the essential elements of any cause of action. This argument does not supply a basis for granting summary judgment or summary adjudication. Arguments relating to admissibility of evidence of Confectioner's prior sexual misconduct is more appropriately brought as a motion *in limine* prior to trial. It is not appropriately raised in a summary judgment motion where no such evidence has been submitted by plaintiff.

Confectioner then argues that plaintiff cannot defeat summary judgment with uncorroborated decades-old recollections by plaintiff. Confectioner contends that "[w]here a plaintiff cannot identify admissible evidence establishing essential elements beyond narrative recollection, no triable issue exists." Even if this is an accurate statement of the law, again, no evidence is submitted in this regard. The burden does not shift to plaintiff to show the existence of triable issues until Confectioner first shows that undisputed facts negate an essential element or elements of specific causes of action.

Confectioner contends that the allegations are of conduct that occurred two decades ago, and that Confectioner is prejudiced by lost records and faded memories. But he submits no legal authorities to the effect that summary judgment may be granted on this basis.

Confectioner attacks the fifth cause of action for assault, arguing that plaintiff's alleged imminent apprehension harmful/offensive contact (SAC ¶¶ 121-123) is insufficient where the SAC does not supply corroborating facts or admissible evidence supporting this element beyond plaintiff's recollection. Similarly, Confectioner argues that the sixth cause of action for sexual battery should be adjudicated in his favor because "the SAC pleads no contemporaneous report by Plaintiff, no contemporaneous medical documentation, and no documentary corroboration."

Aside from the failure to show that such contemporaneous evidence must exist to establish the claims set forth in the SAC, a complaint need only plead ultimate facts upon which liability depends. (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Evidence is not to be included in the complaint. (See "A complaint must allege the ultimate facts necessary to the statement of an actionable claim. It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts." (See *Careau & Co. v. Security Pac. Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1390.) Pointing out that the SAC does not contain certain evidence does not negate any element of any cause of action, and does not shift the burden of production to plaintiff.

Confectioner then argues that the negligence-based causes of action focused on FUSD, alleging what FUSD knew or should have known, "do[] not establish triable evidence of each element supported by admissible proof." However, in this section,

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Tentative Ruling

Re: ***Lopez v. Manulife Investment Management Farmland Management Services, Inc.***
Superior Court Case No. 25CECG02316

Hearing Date: May 19, 2026 (Dept. 502)

Motion: By Defendant to Compel Arbitration, Dismiss Class Claims,
and Stay the Proceedings

Tentative Ruling:

To deny. (9 U.S.C., §§ 3 et seq.; Code Civ. Proc., §§ 1281.2, 1281.4.)

Explanation:

Evidentiary Objections

The court overrules defendant's evidentiary objection numbers 1 through 16. The court sustains plaintiff's evidentiary objections to the Declaration of Segovia paragraphs 5, 8, and 13. The court overrules plaintiff's evidentiary objections to the Declaration of Segovia paragraphs 9 and 10. The court sustains plaintiff's objections to paragraph 11 for the assertions on information and belief, such that what remains is the assertion of Jose Ramirez's prior employment with O.F.R.

Merits

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) "Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute." (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

The party moving to compel arbitration bears the burden of proving by a preponderance of the evidence the existence of an arbitration agreement. (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 18; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 683.) In order to determine whether an arbitration agreement exists, the court may need to assess the parties to any such agreement. (*Melchor Investment Co. v. Rolm Systems* (1992) 3 Cal.App.4th 587, 592.) After the moving party establishes the existence of an arbitration agreement between the parties, then the burden shifts to the opposing party to show that the agreement is otherwise unenforceable. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Nonsignatory

Defendant is not a signatory to the arbitration agreement at issue here, but seeks to compel plaintiff to arbitration. “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” (*Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763.) “The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142, internal quotes and citation omitted.)

Here, the agreement provides,

“The Employee and the Company both agree that except as otherwise provided in this Policy, any claim, dispute, and/or controversy that either party may have against the other ... which would otherwise require or allow resolution by any court between Employee and the Company (or between Employee and the Company's owners, parent or subsidiary companies, affiliates, directors, officers, managers, employees, agents, and parties affiliated with its employee benefit and health plans) arising from, related to, or having any relationship or connection whatsoever with an Employee seeking employment with, employment by, or other association with or termination by the Company ... shall be submitted to and determined exclusively by binding arbitration.”

(Segovia Decl., Exh. A.)

The arbitration agreement defines the Company as “O.F.R., Inc.” (*Ibid.*) In the Spanish version, plaintiff's name appears on the signature line for the employee and “Jose Ramirez” appears on the signature line designated for O.F.R., Inc. (*Id.* at Exh. B.) Jose Ramirez was employed as an O.F.R. supervisor at the time. (*Id.* at ¶ 11.) Defendant presents the arbitration agreement as a stand-alone document. (*Id.* at Exhs. A, B.)

Equitable Estoppel

Defendant argues it should be permitted to compel plaintiff to arbitration under the theory of equitable estoppel. Under the theory of equitable estoppel a plaintiff may be compelled to arbitrate with a nonsignatory where the claims asserted by the plaintiff are inextricably intertwined with the underlying agreement. (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 893.) The parties have identified a dispute between *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782 and *Soltero v. Precise Distribution, Inc.*, *supra*, 102 Cal.App.5th 887 regarding the doctrine of equitable estoppel in the context of nonsignatories to an arbitration agreement. Both of these cases involved staffing companies, but the court in *Soltero* noted it did not involve a situation where co-defendants were being sued on a joint employer theory. (*Soltero v. Precise Distribution, Inc.*, *supra*, 102 Cal.App.5th at p. 897.)

Defendant asserts that *Garcia* is good law in light of the discussion of it in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1132. However, this fails to consider that the California Supreme Court cites *Garcia* as legal authority on compelling arbitration where claims are “intimately founded in and intertwined with” the agreement, but *Soltero* for the authority “that one must be a party to the arbitration agreement either to be bound by or to invoke it.” (*Ford Motor Warranty Cases*, *supra*, 17 Cal.5th at pp. 1128, 1132.) Thus, the California Supreme Court has cited to both cases involved in the split of authority, but has not addressed the split.

Where appellate court decisions are in conflict with one another, then trial courts must choose between the conflicting decisions. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 456.) Soltero is more closely aligned with the instant matter. Like in *Soltero*, plaintiff has only named defendant Manulife in the complaint, not the staffing agency, and has asserted Labor Code violations. Here, plaintiff has not named O.F.R. as a defendant in this lawsuit, nor does plaintiff mention his employment with O.F.R. as a basis for liability against the named defendant. Also, here the arbitration agreement at issue was presented as a stand-alone document.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/15/26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Swan v. Stoll et al.**
Superior Court Case No. 23CECG00336

Hearing Date: May 19, 2026 (Dept. 502)

Motion: Motion for Leave to Amend x2

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/18/26.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Rodriguez Jimenez v. Marquez et al.**
Superior Court Case No. 25CECG01250

Hearing Date: May 19, 2026 (Dept. 502)

Motion: Demurrer

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/18/26.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***In re: Carlos Rodriguez***
Superior Court Case No. 21CECG02536

Hearing Date: May 19, 2026 (Dept. 502)

Motion: by Mercury Insurance Company to File an Interpleader of Funds and Discharge of Liability

Tentative Ruling:

To continue the hearing to Tuesday, July 21, 2026 at 3:30 p.m. in Department 501.

Explanation:

Plaintiff Mercury Insurance Company's renewed application to serve summons on defendants Ronnie Rodriguez, Adrianna Rodriguez, Raquel Rodriguez, Carlos Rodriguez and Michelle Rodriguez by publication was granted on October 8, 2025. No proof of service by publication has been filed. (Cal. Rules of Court, rule 3.1300, subd. (d).) Defendant Christina Rodriguez was not included in the October 8, 2025 order and there is no proof of service of the motion for defendant Christina Rodriguez. The hearing on the motion to file an interpleader is continued to allow plaintiff to serve defendants.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/18/26
(Judge's initials) (Date)